SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Writ Petition (Civil) No. 55 of 2023 (YEAR: 2023)

CORAM: D.Y. CHANDRACHUD, S.K. KAUL, S. RAVINDRA BHAT, HIMA KOHLI, P.S. NARASIMHA

Supriyo @ Supriya Chakraborty
... Appellant(s) / Petitioner(s)
Versus
Union of India
... Respondent(s)

Acts Referred:	Special Marriage Act, 1954, Constitution of India
Sections:	Article 14, Article 19, Article 21

JUDICIAL HEADNOTE & SUMMARY

Held that there is no unqualified fundamental right to marry, leaving the legal recognition of marriage for queer couples to the competence of Parliament.

RATIO DECIDENDI

The Court held that: Held that there is no unqualified fundamental right to marry, leaving the legal recognition of marriage for queer couples to the competence of Parliament. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Supriyo @ Supriya Chakraborty v. Union of India (Writ Petition (Civil) No. 55 of 2023) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Special Marriage Act, 1954, Constitution of India, particularly Article 14, Article 19, Article 21. Held that there is no unqualified fundamental right to marry, leaving the legal recognition of marriage for queer couples to the competence of Parliament.

OPERATIVE ORDER

ORDER: Decided